PUBLIC COURSE

Would Your Dismissal Survive Court?

Stress-Testing Termination Decisions Before Litigation

Connexion Conference & Event Centre
5 & 6 August 2026
9.00AM to 5.00PM

TRAINING FEE

	RM 1225	30% OFF
MECA Member	~~RM 1750~~ Per Day	including 8% SST
Non- Member	RM 2000 Per Day	including 8% SST

HRDCORP CLAIMABLE

* *Prices are inclusive of 8% SST*
* *Employers contributing to HRDcorp may claim the seminar rate subject to a maximum of RM 1750 / day / pax effective 1st November 2024*

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Course Overview

Industrial Relations (IR) and employment law disputes remain one of the most difficult, and unavoidable, aspects of HR management, especially within large organisations.

Yet many HR practitioners approach these situations reactively, focusing primarily on legal rights, procedural compliance, and what the law permits or prohibits. While legally correct, this approach often overlooks the more important objective: achieving the best overall outcome for the organisation while minimising escalation, disruption, cost, and reputational damage.

Course Objective

By the end of this programme, participants will be able to:

- Recognise early warning signs of potential employment disputes;
- Apply proactive IR management strategies before issues escalate;
- Understand the role of perception, disgruntlement, and workplace dynamics in dispute escalation;
- Distinguish between legal compliance and strategic dispute management;
- Influence and manage difficult workplace situations more effectively;
- Handle challenging personalities and emotionally sensitive conversations confidently;
- Assess what constitutes the “best outcome” for employers in different scenarios;
- Reduce organisational exposure to litigation, reputational risk, and operational disruption;
- Apply practical frameworks and tools for effective dispute prevention and resolution.



Modules

1 Understanding the True Nature of Employment Disputes

- Why IR management is one of HR's hardest responsibilities
- Why disputes are unavoidable in modern organisations
- The hidden drivers behind workplace conflict
- Why legal compliance alone is insufficient

2 The Psychology of Employment Disputes

- Perception vs reality
- How disgruntlement develops
- Emotional triggers and escalation patterns
- Understanding employee mindsets during conflict

3 Spotting Problems Before They Escalate

- Early warning indicators
- Identifying high-risk situations
- Risk assessment frameworks for HR practitioners
- Timing and intervention strategies

4 Strategic IR Management Beyond the Law

- Moving from reactive to proactive management
- Defining the "best outcome" for employers
- Balancing legal, commercial, and reputational considerations
- Strategic decision-making during disputes





Modules

5 Managing Difficult Conversations and Personalities

- Handling aggressive, emotional, defensive, or manipulative individuals
- Communication techniques that de-escalate conflict
- Influencing outcomes through trust and credibility
- Maintaining authority without escalating tension

6 Preventing Litigation: The Gold Standard

- Why avoiding litigation is often the optimal outcome
- Common mistakes that trigger unnecessary legal disputes
- Intervention techniques that reduce escalation
- Building sustainable dispute prevention practices

7 Practical Case Studies and Real-World Scenarios

- Analysis of real IR and employment dispute situations
- Strategic response exercises
- Group discussions and decision-making simulations
- Lessons from successful and failed approaches





Who Should Attend

This programme is designed for professionals who are directly involved in managing employee relations, workplace conflict, and employment disputes, including:

- HR Executives, Officers, and Managers responsible for employee relations and workplace discipline
- Industrial Relations practitioners advising on disputes, complaints, and conflict management
- Line Managers and Supervisors who manage difficult employees or sensitive workplace situations
- Business Owners and Senior Managers involved in people management decisions
- HR professionals seeking to strengthen their ability to prevent, manage, and resolve employment disputes before escalation

Training Methodology

This programme is delivered through an engaging and participative learning approach, designed to translate concepts into practical workplace application. The session incorporates:

- Interactive lectures to provide clear conceptual and strategic grounding
- Real-world case studies and workplace scenarios to illustrate practical application
- Group discussions to encourage shared insights and peer learning
- Role-plays and simulations to practise difficult conversations and interventionstrategies
- Practical exercises to reinforce understanding and support hands-on application
- Q&A sessions to address participant-specific challenges

TRAINER

Dharmen Sivalingam
CEO, MECA



Dharmen, an Industrial Relations practitioner with more than 20 years' experience, has supported numerous employers on every aspect of Industrial Relations.

He has experience in the end-to-end management of what can be a delicate relationship between an employer and an employee. He represents only employers and has acted as Counsel for many employers in litigious matters before the Malaysian Courts. He has written numerous articles on Industrial Relations issues at various platforms.

Dharmen has earned a reputation for success in IR disputes because of his distinct ability to process data quickly and distinguish issues in question, thereby producing solutions which are clear and accurate. Dharmen read law at the University of Wolverhampton and was called to the Malaysian Bar in 2001. He commenced legal practice with one of the larger legal firms in Malaysia and set up DSP in 2013.